

A PROPOSAL TO THE PAONIA PLANNING COMMISSION

# Fixing Paonia's Parking Code

*The Mancos-Ouray model: keep residential parking, free up downtown.*

**Re:** Chapter 16, Article 6 (Off-Street Parking and Loading)

**Prepared by:** Pete McCarthy, Paonia resident

**Contents:** Why this matters · Draft ordinance

**Draft for Commission consideration. Not legal advice.**

# Off-street parking in Paonia: a proposal to fix Chapter 16, Article 6

*Prepared for the Paonia Planning Commission by Pete McCarthy, Paonia resident.*

## The short version

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Paonia's off-street parking code has stalled one downtown business after another. Two Colorado towns smaller than Paonia, Mancos and Ouray, already solved this with a modest, proven approach: keep ordinary residential parking and require none downtown. This brief lays out the problem, what comparable towns have done, and a draft rewrite of Article 6 built on that model.

This is **not** a proposal to eliminate parking. Single-family neighborhoods keep their parking exactly as they are. It fixes the part of the code that is actually causing harm: the off-street parking mandate on businesses, which falls hardest on the historic downtown core.

## The problem

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The off-street parking requirements in Article 6 were last amended in 2015 and carry language going back to 1983. Several recent businesses have run into them on the 200 and 300 blocks of Grand Avenue, where buildings predate the automobile and the code now makes them hard and expensive to reuse. At the Commission's June 1 discussion, members noted the bookstore (mid-process now), the Learning Council, CIRC, and Blue Sage as businesses that struggled with the parking requirements.

The current code also:

- Sets residential parking by **bedroom count**, an approach widely considered outdated.
- Lists requirements for **hospitals and high schools** that do not exist in Paonia.
- Triggers requirements on "construction, addition or change of use" without defining those terms, leaving applicants unable to tell when the rule applies.
- Requires off-site parking to sit within **300 feet** of the use, same owner.

- Directs any business that cannot provide on-site parking to contribute to a **“Parking Fund”** that has been suspended since 2015, and cross-references it by an incorrect section number, so the requirement does not function at all.

## Why minimum parking requirements work against a town like Paonia

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The State of Colorado, in its 2024 legislative findings (House Bill 24-1304), concluded that minimum parking requirements:

“put small businesses at a disadvantage relative to large corporations”

because large companies have the capital to build parking and rely less on foot traffic and a sense of place. The same findings cite a published analysis that an off-street parking space can add **\$200 to \$500 per month** to rent, and note that lower-density, parking-heavy development raises a town’s infrastructure costs while lowering its tax revenue.

Colorado has since moved to remove parking mandates in many situations through HB24-1304 (parking) and HB24-1152 (ADUs). Those laws do not bind Paonia, because they apply only to local governments inside a Metropolitan Planning Organization (MPO). Colorado’s five MPOs cover the Denver, Colorado Springs, North Front Range, Pueblo, and Grand Junction areas; Delta County sits in the rural Gunnison Valley planning region and is not in any MPO. The laws nonetheless show the clear direction of state policy, and Paonia is free to adopt the same approach voluntarily.

## What comparable towns have done

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Small towns lead this reform. According to analysis of the national Parking Reform Network database (Sightline Institute), towns under 25,000 people make up roughly 40 percent of known U.S. jurisdictions that have removed parking minimums, and about twice as many small towns as large cities (250,000 and up) have fully repealed parking mandates.

Comparable small Colorado towns have done it, and their adopted code can be quoted directly:

| Town      | Population | What their code does                                                                                                                                                                                  |
|-----------|------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Mancos    | ~1,200     | No off-street parking or loading required in the downtown district; small commercial spaces (2,000 sq ft or less) exempt town-wide; on-street parking counts; ADU needs one space, waivable by staff. |
| Ouray     | ~900       | No off-street parking required for buildings fronting US 550 through downtown; ordinary residential parking kept elsewhere; ADU needs one space.                                                      |
| Del Norte | ~1,460     | Downtown Commercial Business district exempt from off-street parking requirements (since 2015).                                                                                                       |
| Wray      | ~2,360     | “There is no minimum off-street parking requirement in the B-B district.”                                                                                                                             |
| Dolores   | ~885       | No parking required in the downtown district, or for any nonresidential use in a space 2,000 sq ft or smaller anywhere in town.                                                                       |

(Mancos and Ouray are both smaller than Paonia, ~1,450; Del Norte and Wray are comparable and slightly larger, shown for reference.)

Mancos, in Montezuma County, is the closest comparison: a roughly 1,200-person town with a historic main street that exempted its downtown in 2019 (Ord. 751) and has lived with it since. Ouray’s rule, no parking required for the buildings fronting its main highway downtown (Ord. 11, 2023), is a direct parallel to Grand Avenue.

The documented experience in these towns is consistent: empty buildings get reused, businesses open, and no parking shortage materializes. Mancos adopted its downtown exemption in 2019 and Ouray in 2023, and neither has reversed it. In Ecorse, Michigan, which removed its minimums in a 2020 zoning overhaul, the city planner reported that the change “made it so much easier and quicker for people to reoccupy those buildings,” and that the town has “way more parking than we need” (Sightline Institute, 2024).

## A note on accessory dwelling units (for the future, not now)

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Paonia does not currently have accessory dwelling unit (ADU) regulations, so this proposal does **not** address ADU parking. The Commission has noted that an ADU code is coming. When it is written, the parking question will come with it, and it is worth deciding in advance not to let an old-style parking minimum quietly make ADUs impossible. Mancos and Ouray both ask for just one space for an ADU, and Mancos lets staff waive even that when on-street parking is available, which keeps a backyard casita possible without paving over green space. A recommended provision for that future ADU code is included with the draft ordinance, clearly marked as a recommendation rather than part of this proposal.

## This implements the Town's own Comprehensive Plan

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The 2024 Comprehensive Plan calls for exactly the outcomes this proposal supports:

- **Policy ECON-3:** “Create and maintain a healthy, vibrant, and beautiful economic downtown corridor on and around Grand Avenue.”
- **Policy LUF-1:** preserve rural character “while balancing the need for infill, economic growth, housing and redevelopment.”
- **Policies TRANS-9 and TRANS-16:** “encourage, enhance, and promote pedestrian access and walkability to and within the Historic Town Core.”

The plan's vision describes “walkable, tree-lined streets that surround a small but vibrant historic downtown” with “gentle growth” that “provides housing for all walks of life.” Removing the parking barrier downtown is a direct step toward those adopted goals.

## Common questions

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**Will people have nowhere to park downtown?** Removing the requirement does not remove parking. It stops forcing it. Paonia already has substantial parking, including two town lots, and the Commission was advised that the Town's 2025 downtown business survey found general satisfaction with parking availability. Grand Avenue's on-street parking stays available for visitors.

**Is this a big-city idea?** No. The towns that have done this are overwhelmingly small, including several in Colorado, two of them (Mancos and Ouray) smaller than Paonia.

**What about accessible parking?** Federal ADA accessible-parking requirements are unaffected and fully kept.

**Won't businesses just provide no parking?** Businesses provide what their customers need. Letting each use decide is more sensible than a 2015 table that sets parking by bedroom and lists hospitals the town does not have.

## The proposal

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A draft rewrite of Article 6 follows this brief. In summary, it would:

1. Require **no off-street parking for any commercial or other non-residential use** town-wide (Sec. 16-6-10(b)).
2. Require **no off-street parking at all in the C-1 Core Commercial District** (the downtown core; residences and lodging keep one space per unit).
3. Let **on-street and shared parking count** toward any residential requirement.
4. Keep ordinary residential parking, accessible (ADA) parking, and sensible design standards.
5. **Repeal the suspended Parking Fund.**

It does not address ADUs, which the Town does not yet regulate; a recommended ADU parking provision is included separately for whenever the ADU code is written. The package is offered as a starting point for the Commission's own recommendation to the Board of Trustees.

## Selected sources

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- Colorado HB24-1304 (2024), legislative findings on minimum parking requirements; HB24-1152 (2024), accessory dwelling units.
- Mancos Municipal Code Ch. 16, Art. 8 (Ord. 751, 2019); Ouray Land Use Code Ch. 7 (Ord. 11, 2023); Del Norte § 16-9-10 (Ord. 680, 2015); Wray § 18.20.050 (Ord. 636, 2022); Dolores Land Use Code.
- Parking Reform Network mandates database ([parkingreform.org](https://parkingreform.org)); Sightline Institute; Strong Towns.
- Town of Paonia Comprehensive Plan, 2024 Update (Resolution 18-2025).

# Draft rewrite of Chapter 16, Article 6 (Off-Street Parking and Loading)

**Working draft for Planning Commission consideration. Not legal advice.** Run past the Town Attorney before introduction. Section numbers follow the Town's existing Sec . 16-6-XX scheme.

The approach mirrors what two Colorado towns smaller than Paonia adopted (Mancos, Ord. 751/2019; Ouray, Ord. 11/2023): keep ordinary residential parking, require none downtown, and remove the off-street parking mandate for businesses. It touches nothing in the single-family neighborhoods.

*In Part 2, the indented italic notes are explanatory commentary for the Commission. They are not part of the enacted code.*

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## **Part 1. Adopting ordinance (recitals and enactment)**

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**\*\*ORDINANCE NO. 2026-\_\_\*\***

AN ORDINANCE OF THE BOARD OF TRUSTEES OF THE TOWN OF PAONIA, COLORADO, REPEALING AND REENACTING CHAPTER 16, ARTICLE 6 OF THE PAONIA MUNICIPAL CODE TO REMOVE MINIMUM OFF-STREET PARKING REQUIREMENTS FOR NON-RESIDENTIAL USES AND TO MODERNIZE OFF-STREET PARKING AND LOADING STANDARDS.

**WHEREAS**, the off-street parking requirements in Chapter 16, Article 6 were last amended in 2015 and substantially predate that, having been carried forward from ordinances adopted in 1983, 2000, and 2003, and contain use categories such as hospitals and high schools that do not exist in the Town; and

**WHEREAS**, the Town’s historic commercial core along Grand Avenue, which lies within the C-1 Core Commercial District (Sec. 16-2-70), was largely built before the automobile, such that minimum off-street parking requirements render existing buildings nonconforming and impose substantial costs on the reuse of those buildings by new and expanding businesses; and

**WHEREAS**, the Planning Commission has heard that minimum parking requirements have created repeated obstacles for businesses seeking to open or expand in the Town’s commercial core; and

**WHEREAS**, the Planning Commission has been advised that a 2025 survey of downtown businesses conducted by the Town found general satisfaction with parking availability, and that the Town contains substantial public and private parking, including two municipal parking lots; and

**WHEREAS**, the General Assembly of the State of Colorado, in House Bill 24-1304 (2024), found that minimum parking requirements add to housing costs and “put small businesses at a disadvantage relative to large corporations,” and, citing a published analysis, that an off-street parking space “can add between two hundred and five hundred dollars per month in rent”; and

**WHEREAS**, the Town’s adopted Comprehensive Plan (2024 Update, accepted by the Board of Trustees by Resolution 18-2025) calls in Policy ECON-3 to “create and maintain a healthy, vibrant, and beautiful economic downtown corridor on and around Grand Avenue,” in Policy LUF-1 to “preserve Paonia’s rural character... while balancing the need for infill, economic growth, housing and redevelopment,” and in

Policy TRANS-9 to “encourage, enhance, and promote pedestrian access and walkability to and within the Historic Town Core”; and

**WHEREAS**, removing minimum off-street parking requirements for non-residential uses directly advances these adopted Comprehensive Plan policies; and

**WHEREAS**, the elimination of minimum off-street parking requirements does not prohibit or discourage the provision of off-street parking, but leaves the amount of such parking to the judgment of property and business owners; and

**WHEREAS**, the “Parking Fund” referenced in the existing Article 6 has been suspended since 2015 and is no longer operative;

**NOW, THEREFORE, BE IT ORDAINED** by the Board of Trustees of the Town of Paonia, Colorado:

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## Part 2. The reenacted Article 6 (code text)

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**Section 1.** Chapter 16, Article 6 of the Paonia Municipal Code is hereby repealed and reenacted to read as follows:

### **SEC. 16-6-10. OFF-STREET PARKING; PURPOSE AND REQUIREMENTS.**

(a) **Purpose.** This Article sets the amount of off-street parking by the needs of each use rather than by inherited fixed ratios, in order to support the reuse of existing buildings, reduce the cost of housing and of opening or expanding a business, conserve land and limit unnecessary impervious surface, and reinforce the walkable character of the Town.

(b) **No off-street parking required for non-residential uses.** No off-street motor vehicle parking shall be required for any commercial, business, industrial, institutional, civic, or other non-residential use in any zoning district of the Town.

(c) **C-1 Core Commercial District.** In the C-1 Core Commercial District (Sec. 16-2-70), no off-street parking shall be required for any use, except that a dwelling unit or lodging unit shall provide one (1) off-street parking space per unit.

**(d) Residential parking outside the C-1 District.** Outside the C-1 Core Commercial District, off-street parking for residential uses shall be provided as follows:

| Use                                            | Spaces               |
|------------------------------------------------|----------------------|
| Single-family or two-family dwelling           | 2 per unit           |
| Multi-family, studio or 1-bedroom              | 1 per unit           |
| Multi-family, each additional bedroom          | plus 0.5 per bedroom |
| Multi-family visitor parking (6 or more units) | plus 1 per 4 units   |
| Dwelling in a mixed-use building               | 1 per unit           |
| Lodging unit (hotel, motel, bed and breakfast) | 1 per unit           |

**(e) On-street and shared credit.** Where off-street parking is required under subsection (c) or (d), the requirement may be satisfied, in whole or in part, by legal on-street parking spaces along the lot's frontage or by shared or joint-use parking with a nearby use under a written agreement. A given on-street space may be counted toward only one lot.

**(f) Parking not precluded.** Nothing in this Article prohibits an owner from providing off-street parking voluntarily. Any off-street parking that is provided shall meet the accessible-parking standards of Sec. 16-6-30 and the design standards of Sec. 16-6-60.

**(g) Definitions.** Terms used in this Article have the meanings given in Chapter 16. [Staff to confirm that “dwelling unit,” “lodging unit,” and “mixed-use building” are defined in the Chapter 16 definitions; if not, add definitions here.]

The reform: the Town no longer dictates how much off-street parking a business must build. Off-street parking minimums are removed for all non-residential uses town-wide, and no parking at all is required in the C-1 downtown core, while ordinary residential parking is kept. This follows Mancos (Sec. 16-8-2, 16-8-3) and Ouray (Sec. 7-8-E.1.b), which require no off-street parking in their downtown cores and keep residential parking. Paonia takes the simple step of removing the mandate for commercial uses town-wide rather than maintaining a separate commercial parking table. The old undefined “construction, addition or change of use” trigger and Table 16-5 (which listed hospitals and high schools the Town does not have, and set residential parking by bedroom count) are repealed.

## **SEC. 16-6-20. RESERVED.**

Explanatory note (not code): The Town does not currently regulate accessory dwelling units (ADUs). Off-street parking for ADUs is therefore not addressed in this ordinance. A recommended ADU parking provision, for whenever the Town adopts ADU regulations, appears in Part 4 below.

## **SEC. 16-6-30. ACCESSIBLE (ADA) PARKING.**

Where off-street parking is provided, accessible parking spaces shall be provided in the number, dimensions, and configuration required by the Americans with Disabilities Act (ADA) Standards for Accessible Design and any applicable State of Colorado accessibility standards, as amended. Accessible spaces shall be located on the shortest accessible route to an accessible building entrance.

Removing parking minimums does not change federal ADA accessible-parking requirements; this keeps them explicit.

## **SEC. 16-6-40. BICYCLE PARKING.**

(a) New construction, or an expansion that adds off-street motor vehicle parking spaces, shall provide a minimum of two (2) bicycle parking spaces, plus one (1) additional bicycle space for each ten (10) motor vehicle spaces provided, up to a maximum of ten (10) bicycle spaces.

(b) A bicycle parking space shall be at least six (6) feet long and two (2) feet wide and securely anchored. Short-term (visitor) bicycle parking shall be located within one hundred (100) feet of, and visible from, the principal public entrance to the use served.

Modeled on Buffalo's Green Code (Sec. 8.2). The requirement attaches only when a project builds car parking, so it adds nothing to a small reuse project that provides no car parking.

## SEC. 16-6-50. PARKING FUND REPEALED.

The Parking Fund is repealed. No fee, contribution, or payment in lieu of providing off-street parking shall be required as a condition of any land use approval.

The Parking Fund has been suspended since 2015 and is no longer operative; this repeals it cleanly.

## SEC. 16-6-60. DESIGN AND SAFETY STANDARDS FOR PARKING THAT IS PROVIDED.

Where off-street parking or loading is provided, it shall comply with the following. These standards apply only to parking that is voluntarily provided; they do not require that any parking be provided. Compliance shall be determined at the time of building permit or site-plan review.

**(a) Surfacing and drainage.** Parking areas shall be surfaced with asphalt, concrete, pavers, or compacted gravel maintained to control dust and tracking, and graded so as not to drain onto adjacent property or the public right-of-way.

**(b) Access and circulation.** Parking areas shall be designed so that vehicles can enter and exit safely and are not required to back into a street, except for parking serving a single-family or two-family dwelling.

**(c) Drive aisles.** Two-way drive aisles shall be a minimum of twenty-two (22) feet wide. One-way aisles serving angled parking shall be a minimum of twelve (12) feet (30 degrees), fifteen (15) feet (45 degrees), or eighteen (18) feet (60 degrees) wide.

**(d) Landscaping and screening.** Any new off-street parking area of six (6) or more spaces shall be separated from an adjacent residential lot or the public right-of-way by a minimum five (5) foot landscaped strip or a six (6) foot opaque fence.

**(e) Lighting.** Any lighting of a parking area shall be shielded and directed downward to avoid glare onto adjacent property or the public right-of-way (Dark-Sky friendly).

**(f) Dimensions.** A standard parking space shall be at least nine (9) feet by nineteen (19) feet; compact and tandem spaces are permitted.

Keeps the useful parts of the old design standards (surfacing, aisle widths, landscaping, and dimensions) for parking that is built. It does not require building any parking.

### **SEC. 16-6-70. OFF-STREET LOADING.**

Off-street loading is not required. Any loading area that is provided shall be located and designed so that loading and unloading does not obstruct a public street, sidewalk, or required accessible route.

Replaces the old prescriptive loading formula with a simple performance standard.

### **SEC. 16-6-80. SHARED PARKING.**

Two or more uses may satisfy any off-street parking required of them through shared or joint-use parking by written agreement. No Town approval is required, but a copy of any such agreement may be filed with the Town. This Section does not require any use to provide parking.

Replaces the old 300-foot, same-owner off-site rule with simple shared parking. On-street credit is addressed in Sec. 16-6-10(e).

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## **Part 2 (continued). Closing sections**

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**Section 2. Repealer.** All ordinances or parts of ordinances in conflict with this ordinance are hereby repealed to the extent of such conflict. Violations of the design standards in Sec. 16-6-60 are subject to the penalty and enforcement provisions otherwise applicable to Chapter 16.

**Section 3. Severability.** If any section, subsection, sentence, clause, or phrase of this ordinance is held invalid or unconstitutional, such holding shall not affect the validity of the remaining portions of this ordinance.

**Section 4. Effective date.** This ordinance shall take effect and be in force as provided by law, following final passage, approval, and publication in accordance with C.R.S. § 31-16-105.

INTRODUCED, READ, and ORDERED PUBLISHED on first reading this \_\_\_\_ day of \_\_\_\_\_, 2026. PASSED, ADOPTED, and ORDERED PUBLISHED on second and final reading this \_\_\_\_ day of \_\_\_\_\_, 2026.

TOWN OF PAONIA, COLORADO, by \_\_\_\_\_, Mayor. ATTEST:  
\_\_\_\_\_, Town Clerk.

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### **Part 3. How the new code compares to the current code**

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What each part of the current Article 6 does today, and what replaces it:

| Current code                                         | What it does today                                                                                                                                       | New                                                                                                                                                                                                                                                     |
|------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <b>16-6-10(a) + Table 16-5</b>                       | Minimum spaces by use; undefined “construction/addition” trigger; lists hospitals and high schools the Town does not have; sets parking by bedroom count | <b>16-6-10:</b> no off-street parking required for non-residential uses town-wide; none at all in the C-1 downtown core (residences/ lodging keep 1 per unit); ordinary residential parking kept; on-street and shared credit. Old Table 16-5 repealed. |
| (no ADU provision)                                   | (none)                                                                                                                                                   | <b>16-6-20:</b> Reserved. ADUs are not regulated yet; a parking approach is recommended for the future ADU code (Part 4).                                                                                                                               |
| <b>16-6-20</b> Combinations of uses                  | Sum the minimums                                                                                                                                         | Deleted (nothing to sum).                                                                                                                                                                                                                               |
| <b>16-6-30</b> Uses not listed                       | Commission sets the count                                                                                                                                | Deleted (no counts to set).                                                                                                                                                                                                                             |
| <b>16-6-40(1)</b> Off-site within 300 ft, same owner | Rigid off-site rule                                                                                                                                      | <b>16-6-80:</b> flexible shared parking, no distance rule.                                                                                                                                                                                              |
| <b>16-6-40(2)</b> Parking district / fee             | Fee-in-lieu via district                                                                                                                                 | Folded into the 16-6-50 repeal and 16-6-80 shared parking.                                                                                                                                                                                              |
| <b>16-6-40(3)</b> Parking Fund contribution          | Pay into a suspended fund                                                                                                                                | <b>16-6-50:</b> fund and all payment-in-lieu repealed.                                                                                                                                                                                                  |
| <b>16-6-50</b> Parking Fund                          | “[Suspended] indefinitely”                                                                                                                               | <b>16-6-50:</b> formally repealed.                                                                                                                                                                                                                      |
| <b>16-6-60</b> Design requirements                   | Surfacing, aisles, landscaping, ADA, bike substitution                                                                                                   | Split into <b>16-6-30</b> (ADA), <b>16-6-40</b> (bike), and <b>16-6-60</b> (design for parking that is provided).                                                                                                                                       |
| <b>16-6-70</b> Off-street loading                    | Prescriptive loading formula                                                                                                                             | <b>16-6-70:</b> performance standard, not required.                                                                                                                                                                                                     |

## Part 4. Recommendation for the future ADU code (NOT part of this ordinance)

Paonia does not currently allow accessory dwelling units, so this ordinance does not regulate ADU parking. But the Commission noted an ADU code is coming. When that code is written,



the parking question will come with it, and the simplest, most defensible answer is already proven in two Colorado towns our size. We recommend the Town adopt, at that time, the following:

**Recommended ADU parking provision (for the future ADU code):** An accessory dwelling unit shall provide one (1) off-street parking space in addition to the parking required for the primary dwelling. The Town may waive this requirement where the applicant demonstrates to planning staff that the space is not feasible and/or that on-street parking is available without negatively impacting the neighborhood. The required space may be satisfied by a driveway, tandem space, carport, or garage.

*Source: adapted from Mancos Sec. 16-4-10(e)(7), which requires one off-street ADU space with a staff-level waiver (no hearing) where on-street parking exists. Ouray Sec. 7-7-F.3 likewise requires one off-street space for the ADU (with no specified form and no staff waiver). Either keeps an ADU buildable without forcing a homeowner to pave green space.*